

	Motion to be relieved as counsel of record	Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
6	Herbas vs. Ean Holdings, LLC 2023-01360506 Motion to Dismiss	Defendant Lauren A. Boisdore's (erroneously sued as Lauren Ashley Brisdore) motion to dismiss Plaintiff Adrien Herbas' complaint pursuant to Code of Civil Procedure section 2023.010 et seq. for failure to appear for his Court-ordered deposition is DENIED, in part, and GRANTED, in part. Defendant Lauren A. Boisdore moves to dismiss plaintiff Alejandra Ortiz's Complaint, for her failure to appear for her Court-ordered deposition on 1/16/26. As an initial matter, on 6/1/26, after the parties reported to the Court that they were trying to settle this action, the Court stayed its previous order granting Defendant's request for sanctions against Plaintiff in the reduced amount of \$1,723.70 payable within 30 days. To date, Plaintiffs have not filed a dismissal of the entire action. Thus, pursuant to the Court's 6/1/26 Order, the stay is lifted, Plaintiff is ORDERED to pay the above sanction within 30 days starting 9/28/2026, as well as the ordered sanctions in the ruling below: "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) "The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. 'Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled but denied discovery." ' [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. 'A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.' [Citation.]" (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992 (<i>Doppes</i>) (Footnote 5 omitted.)).

		Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 796.) Plaintiff violated the Court's 12-30-25 Order compelling Plaintiff to appear for her deposition by no later than 1/30/26. (Canale Decl., ¶ 3, Ex. A; ROA 170.) Based on Plaintiff's email stating Plaintiff was available on any day except 1/13/25, Defendant noticed Plaintiff's deposition for 1/16/26. (Canale Decl., ¶¶ 4-5, Exs. B-C.) However, Plaintiff failed to appear for her deposition. (Canale Decl., ¶ 6, Ex. D.) The moving party must not only show that there was violation of the court's order, but that such violation was willful. (<i>Doppes, supra</i>, 174 Cal.App.4th at 992.) Although Defendant has shown Plaintiff failed to comply with the Court's 12-30-25 Order, there is no showing that the violation was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate at this time. Court's Ruling: Defendant's request for terminating sanctions is DENIED. Sanctions: Defendant requests sanctions in the amount of \$2,573.70 calculated as follows: \$300/hr. x. 6.4hrs.; plus \$60 filing fee and \$653.70 for a Certificate of Non-Appearance. The amount requested is excessive and is reduced to \$1,313.70 (\$300/hr. x 2hrs. + \$60 filing fee + \$653.70).] Court's Ruling: Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$1,313.70. Plaintiff is ORDERED to pay \$1,313.70 in monetary sanctions to Defendant within 20 days' notice of this ruling. Plaintiff is ORDERED to comply with the Court's 12-30-25 Order and appear for her deposition within 20 days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions.
7	Juliar vs. Providence St. Jude Medical Center 2022-01280961	Defendant St. Jude Hospital's Motion to Tax Costs is GRANTED.